

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

# CASE OF BEREZUTSKIY AND OTHERS v. RUSSIA

*(Applications nos. 26935/21 and 13 others –*
*see appended list)*

JUDGMENT

STRASBOURG

25 April 2024

*This judgment is final but it may be subject to editorial revision.*



**In the case of Berezutskiy and Others v. Russia,**

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 April 2024,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

## III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

## IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

## V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in the above paragraphs, the Court considers that there is no need to deal separately with these remaining complaints.

## VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

# FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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|---|---|
| Viktoriya Maradudina | Peeter Roosma |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (disproportionate measures against organisers and participants of public assemblies)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 1. | 26935/21<br>17/05/2021 | **Yuriy Vladimirovich BEREZUTSKIY**<br>1997 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>18/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report on 31/01/2021 from 12.00 p.m. until 9 p.m.;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 2. | 35142/21<br>25/06/2021 | **Aleksandr Grigoryevich DAVLYATCHIN**<br>1984 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Moscow City Court<br>30/04/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.55 a.m. until 11.30 p.m. on 31/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 3. | 41819/21<br>02/08/2021 | **Andrey Aleksandrovich BELOTSERKOVSKIY**<br>1992 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>02/02/2021 | article 20.2 § 6.1 of CAO | detention for 6 days | Moscow City Court<br>08/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.00 p.m. on 02/02/2021 until 1 p.m. on 04/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | | | | | Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO | |
| 4. | 41837/21<br>02/08/2021 | **Ivan Olegovich PETRYAKOV**<br>1995 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | detention for 5 days | Moscow City Court<br>08/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station before and after compiling an offence report from 11.45 p.m. on 02/02/2021 until court hearing at 12.30 p.m. on 03/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 5,000 |
| 5. | 46137/21<br>31/08/2021 | **Konstantin Vadimovich SHLYAKHOVOY**<br>1980 | Bochilo Anna Yevgenyevna<br>Barnaul | Rally "Free Navalnyy"<br>Smolensk<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Smolensk Regional Court<br>10/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report at 2 p.m. on 23/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 6. | 46140/21<br>01/09/2021 | **Nikolay Yevgenyevich FROLOV**<br>1979 | Markin Konstantin Aleksandrovich<br>Velikiy Novgorod | Rally "Free Navalnyy"<br>Velikiy Novgorod<br>23/01/2021 | article 20.2 § 5 of CAO | 20 hours of community service | Novgorod Regional Court<br>04/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention in the police station for compiling an offence report on 27/01/2021 from 10.30 a.m. until 2.30 p.m.;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 7. | 54270/21<br>20/10/2021 | **Pavel Sergeyevich SHTANKO**<br>1978 | Tseytlina Olga Pavlovna<br>St Petersburg | Rally to support citizens of Belarus and "Free Navalnyy"<br><br>St Petersburg<br><br>24/01/2021 | article 20.2 § 2 of CAO | detention for 5 days | St Petersburg City Court<br>20/04/2021 | Art. 5 (1) - unlawful detention - arrest at home address at 3.55 p.m. on 23/03/2021, escorting to and detention at the police station from 4.15 p.m. on 23/03/2021 until court hearing at 11.40 p.m. on 25/03/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO | 5,000 |
| 8. | 54271/21<br>20/10/2021 | **Yuliya Sergeyevna SHTANKO**<br>1985 | Tseytlina Olga Pavlovna<br>St Petersburg | Rally to support citizens of Belarus and "Free Navalnyy"<br><br>St Petersburg<br><br>24/01/2021 | article 20.2 § 2 of CAO | detention for 7 days | St Petersburg City Court<br>15/06/2021 | Art. 5 (1) - unlawful detention - arrest at home address at 3.55 p.m. on 23/03/2021, escorting to and detention at the police station from 4.15 p.m. on 23/03/2021 until court hearing at 11.40 p.m. on 25/03/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 9. | 59870/21<br>24/11/2021 | **Veronika Olegovna PSHENICHNAYA**<br>1971 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Tomsk<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Tomsk Regional Court<br>28/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station before and after compiling an offence report from 8.30 p.m. on 21/04/2021 until 0.30 a.m. on 22/10/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 10. | 59884/21<br>24/11/2021 | **Ivan Konstantinovich ANTOSHKIN**<br>1992 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Kazan<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Tatarstan Republic<br>02/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station before and after compiling an offence report from 7.50 p.m. on 21/04/2021 until 4.50 p.m. on 22/04/2021 | 4,000 |
| 11. | 60140/21<br>06/12/2021 | **Aleksey Alekseyevch STEPANOV**<br>1982 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Tomsk<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Tomsk Regional Court<br>09/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.35 p.m. until 10.15 p.m. on 21/04/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 12. | 2869/22<br>07/12/2021 | **Andrey Andreyevich SIMONOV**<br>1995 | | Rally "Free Navalnyy"<br>Tyumen<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Tyumen Regional Court<br>07/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station before and after compiling an offence report from 8.15 p.m. on 21/04/2021 until court hearing at 2 p.m. on 22/04/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 13. | 2979/22<br>17/12/2021 | **Yelena Grigoryevna KAREVA**<br>1965 | Maylova Darya Nikolayevna<br>Krasnoyarsk | Rally "Free Navalnyy"<br><br>Krasnoyarsk<br><br>21/04/2021 | article 20.2 § 2 of CAO | fine of RUB 20,000 | Krasnoyarsk Regional Court<br>17/06/2021 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 14. | 34918/22<br>25/06/2022 | **Dmitriy Aleksandrovich PROKOPCHUK**<br>1979 | Markin Konstantin Aleksandrovich<br>Velikiy Novgorod | Anti-war protest<br><br>Velikiy Novgorod<br><br>06/03/2022 | article 20.2 § 5 of CAO | fine of RUB 12,000 | Novgorod Regional Court<br>22/04/2022 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.50 p.m. until 9.45 p.m. on 06/03/2022;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

[1] Plus any tax that may be chargeable to the applicants.